

Smt.Siya Bai vs Smt.Bhuri Bai on 1 July, 2025

Author: G. S. Ahluwalia

Bench: G. S. Ahluwalia

NEUTRAL CITATION NO. 2025:MPHC-GWL:13785

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IN THE HIGH COURT OF MADHYA PRADESH
AT GWALIOR
BEFORE
HON'BLE SHRI JUSTICE G. S. AHLUWALIA
ON THE 1st OF JULY, 2025
SECOND APPEAL No. 443 of 2010
SMT.SIYA BAI AND OTHERS
Versus
SMT.BHURI BAI AND OTHERS

Appearance:

Shri Yogesh Chaturvedi - Advocate for appellants.

Shri Mukesh Sharma- Advocate for respondents No.3 & 6 to 8.

JUDGMENT

Office has listed this case pointing out that respondent No.9-Dilip Kumar and respondent No.10-Jatan Singh have expired.

2. No application for bringing legal representatives of respondent No.9-Dilip Kumar and respondent No.10- Jatan Singh has been filed.

3. Admittedly, respondent No.9-Dilip Kumar and respondent No.10- Jatan Singh have expired prior to 90 days and thus the appeal against respondents No.9 and 10 has automatically stood abated by force of law.

4. Now, the only question for consideration is as to whether the entire appeal would abate or it would abate qua respondent No.9-Dilip Kumar and respondent No.10- Jatan Singh.

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5. It is submitted by counsel for appellants that this Second Appeal was admitted by order dated 13.12.2010 and the respondents were restrained from alienating the suit land and creating third party interest in the disputed land or from changing the nature of the property. It is submitted that

respondent No.9- Dilip Kumar and respondent No.10- Jatan Singh had purchased some part of the disputed property by registered sale deed dated 28.06.2012 & 25.08.2011 respectively, from respondent No.4. It is submitted that since the sale-deeds in favour of respondent No.9 and 10 were executed in violation of temporary injunction order dated 13.12.2010, therefore, the aforesaid sale deeds cannot be read and they have to be treated as nonest for the purposes of this civil suit. Accordingly, it is submitted that respondents No.9 and 10 are not necessary party and should not have been impleaded as respondents. Accordingly, it is submitted that merely because this appeal has stood abated against respondents No.9 and 10, it cannot be said that the entire appeal would stand abated. In support of his contention, counsel for appellant has relied upon the judgment passed by the Supreme Court in the case of Surjit Singh And Others Vs. Harbans Singh And Others reported in (1995) 6 SCC 50.

6. Per contra, it is submitted by counsel for respondent that once respondents No.9 and 10 were impleaded on the application filed by appellants themselves, therefore, now, they cannot raise an objection to the effect that respondents No.9 and 10 are not the necessary party.

7. Considered the submissions made by counsel for the parties.

8. IA.No.3586/2018 was filed by appellants themselves along with affidavit of appellant No.3-Kallu S/o Anandi @ Anandilal Kachhi. Thereafter, IA. No.2691/2019 was filed by appellants mentioning therein that IA.No.3586/2018 NEUTRAL CITATION NO. 2025:MPHC-GWL:13785 was allowed by order dated 19.06.2019 but by mistake the amendment could not be carried out, therefore, permission was sought to carry out the amendment, thereby impleading the purchasers of suit property by registered sale deeds dated 28.06.2012 & 25.08.2011. Accordingly, IA. No.2691/2019 was allowed by order dated 20.08.2019. Thus, it is clear that it was the appellants themselves who had treated respondents No.9 and 10 as necessary party. Whether the sale deeds executed in favour of respondents No.9 and 10 should have been treated as nonest as the same were executed in violation of interim injunction order dated 13.12.2010 or not, should have been considered by appellants themselves before filing IA.No.3586/2018 for impleading subsequent purchasers as respondents.

9. Once respondents No.9 and 10 have been impleaded on the application filed by appellants themselves, now, they are estopped from taking a somersault and cannot claim that the sale deeds dated 28.06.2012 & 25.08.2011 executed in favour of respondents No.9 and 10, namely, Dilip Kumar and Jatan Singh should be treated as nonest for the purposes of this appeal.

10. Respondents No.1 to 4 had filed a suit for declaration of title and permanent injunction. It was their case that Bhuri Bai is the legally wedded wife of Anandilal whereas respondents No.2, 3 and 4 are the legitimate children of Anandilal. It was also the case of plaintiffs that Smt. Siya Bai was not related to Anandilal in any manner. Accordingly, the appellants have wrongly got their names mutated in the revenue records to the extent of half share in the property left by Anandilal. Both the courts below have held that appellant No.1 Smt. Siya Bai was not married to Anandilal and therefore, appellants No.2 to 7 cannot be treated as legitimate children in the light of Section 16 of Hindu Marriage Act.

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11. It is not the case of appellants that property in question was ever partitioned amongst the plaintiffs. Therefore, it appears that some of the plaintiffs/respondents had sold their undivided share. Whether a specific piece of land could have been sold by them or they could have sold their share only is a question which is to be agitated by the respondents amongst themselves. But for the time being it is clear that both the courts below had held that the appellants have no share in the property. Since the appeal against respondent No.9 and 10 has already stood abated, therefore, in case if any contrary judgment is passed, then it would amount to two different decrees in a single case which is not permissible as held by the Supreme Court in the case of Sunkara Lakshminarasamma (Dead) By Legal Representatives Vs. Sagi Subba Raju and Others, reported in (2019) 11 SCC 787.

12. Accordingly, this Court is of considered opinion that since legal representatives of respondents No.9 and 10 have not been brought on record, in spite of opportunities granted by this Court by orders dated 23.07.2024, 25.11.2024, 10.12.2024 and 06.03.2025, therefore, the entire appeal would stand as abated. It is accordingly, dismissed as abated.

(G.S. Ahluwalia) Judge pd